

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Srinagar **PS:** ACB Srinagar
Year: 2024
FIR No: RC1232024A0004 **Date:** 25/10/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120-B	420 & 409
PC Act-1988 (As amended in 2018)	13(2)	13(1)(a)

3. **Suspected offences:** Criminal Conspiracy, Cheating, Criminal Breach of Trust, Criminal Misconduct

(a) **Occurrence of offence:**

Day: **Time Period:**
From Date: 2022 **To Date:** 2024

(b) **Information Received at PS:** CBI ACB Srinagar
Date: 25/10/2024

(c) **General Diary Reference:**

Entry No.: 05
Date: 25/10/2024 **Time:** 16:33:44

4. **Type of Information:** Written

5. **Place of Occurrence:** Sumbal, District Bandipore and other places

(a) **Direction & distance from PS:** North West 25 KM

Beat No.:

(b) **Address:**

Plot No.: Jammu and Kashmir Bank Limited **Area:** Branch Office Sumbal
City: Sumbal **Pin:**
State: Jammu and Kashmir **District:** Bandipore

(c) **In case, outside the limit of this Police Station, then**

Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Gazanfar Husain Paray

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
--------------	---------------	----------------

(f) **Occupation:**

(g) **Address:**

Plot No	Area	City	State	District	Pin
---------	------	------	-------	----------	-----

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1**Name:** Mr.Asif Ahmad Dar(1)**Address:****Accused 2****Name:** Mr.Barkat Ali Dar(2)**Address:****Accused 3****Name:** Mr.Nazir Ahmad Wani(3)**Address:****Accused 4****Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:**

No delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
-----------	-----------------	--------------------------

10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

A complaint vide Ref: JKB/VIG//2024-464 dated 24.10.2024 has been received from Shri Gazanfar Husain Paray, Incharge Vigilance Department, J&K Bank Ltd., Corporate Office, Srinagar regarding misappropriation of bank funds by branch officials of Sumbal Branch of J&K Bank Ltd. under the garb of implementation of Govt. sponsored PMEGP loans.

It is alleged in the complaint that Prime Minister Employment Generation Program (PMEGP) is a central sector scheme that offers financial assistance to create employment opportunities in rural as well as urban areas and the scheme is administered by the Ministry of Micro, Small and Medium Enterprises and implemented by the Khadi & Village Industries Commission. Loan amounting to Rs.10 lakhs can be availed by the eligible persons under PMEGP from banks & NBFCs. The Supervision & Control (S&C) Division Kashmir of J&K Bank have conducted investigation into above matter and found that three (03) PMEGP loan accounts had turned NPA, in which connivance of concerned bank officers/officials and brokers in misappropriation of bank funds is prima facie found. Outstanding loan amount in these three accounts is Rs.22,07,737/-. Bank is facing problems in recovery of the outstanding amount from above three PMEGP loan accounts and other many cases for the reason that the borrowers are claiming to have received only a fraction of amount of the loan from the brokers.

The allegations mentioned in the complaint prima facie disclose that unknown officials of the J&K Bank, Sumbal Branch office in conspiracy with above named borrowers, unknown brokers and unknown others have cheated the bank and misappropriated the bank funds and caused wrongful loss to the tune of Rs.22,07,737/- to the bank and wrongful gain to themselves.

The above facts prima facie disclose commission of cognizable offences made punishable U/Section 120-B r/w Sec. 420 & 409 of IPC and Sec. 13(2) r/w Sec. 13(1)(a) of the PC Act, 1988 (as amended in 2018) and substantive offences thereof. Hence, this FIR is registered.

Original complaint Ref: JKB/VIG//2024-464 dated 24.10.2024 is enclosed herewith. The same may be read as part and parcel of this FIR.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:**(1) Registered the case and took up the investigation:** Yes

OR

(2) Directed**Name of IO:**

Homi Garg

Rank:

ADDL SUPERINTENDENT OF POLICE (ACB Srinagar)

No:

118541

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:
on point of jurisdiction.

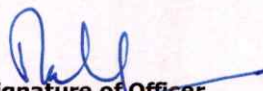
District:

Attached documents:
Document name

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of
the complainant/informant

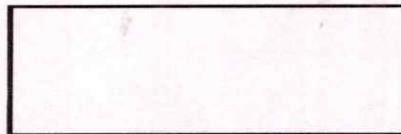

Signature of Officer
in-charge Police Station

Name: Rahul Sharma

Rank: DY. INSP. GENERAL OF
POLICE (ACB Srinagar)

Rahul Sharma, IPS
DIQ/HOB
CBI ACB, SRINAGAR

15. Date and time of dispatch to the Court:



Vigilance Department

Ref: JKB/VIG//2024-464

Dated : 24.10.2024

To

The Deputy Inspector General of Police,
CBI-ACB Srinagar,
Guest House No. 06,
Near MLA Hostel, Srinagar - 190001.

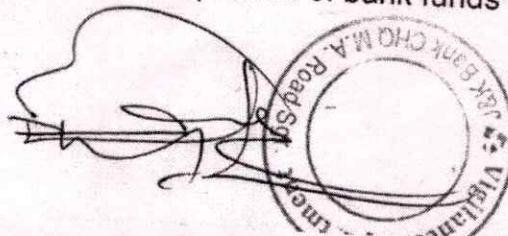
Subject: - Complaint regarding misappropriation of bank funds by branch officials of Sumbal Branch of J&K Bank Ltd. in implementation of Govt. sponsored PMEGP loans.

Sir

It is submitted that Prime Minister Employment Generation Program (PMEGP) is a central sector scheme that offers financial assistance to create employment opportunities in rural as well as urban areas. The scheme is administered by the Ministry of Micro, Small and Medium Enterprises (MoMSME) and implemented by the Khadi & Village Industries Commission (KVIC). The loan amount of Rs.10.00 lakhs can be availed by the eligible persons under PMEGP from nationalized banks as well as other private & public sector banks including J&K Bank Ltd. & NBFCs.

The J&K Bank Ltd. through an investigation by Vigilance Officer had observed that some officials of J&K Bank branch office Sumbal, Distt. Bandipore in connivance with some brokers, have misappropriated Bank funds by sanctioning and disbursing PMEGP loans to non-eligible persons and disbursed loan on the basis of fake bills and suppliers which caused wrongful loss to the bank (list of 25 such accounts is enclosed).

That Supervision & Control (S&C) Division Kashmir of J&K Bank have conducted investigation into above matter, which revealed that the following 03 PMEGP loan accounts had turned NPA, in which connivance of concerned bank officers/officials and brokers in misappropriation of bank funds is prima facie found.



S. No.	Loan A/c No. with name of borrower	Date of loan sanction	Loan Amount disbursed (in Rs.)	Outstanding loan amount (in Rs.) as on 30-09-2024
1	0089267270000058 Asif Ahmad Dar	30-05-2022	2,50,000 (TL) 6,50,000 (WC)	1,58,781 (TL) 6,05,199 (WC)
2	0089267270000059 Barkat Ali Dar	-do-	8,00,000 (TL) 1,00,000 (WC)	5,48,540 (TL) 96,697 (WC)
3	0089267270000060 Nazir Ahamd Wani	-do-	2,00,000 (TL) 7,00,000 (WC)	1,28,421 (TL) 6,70,099 (WC)
Total			27,00,000/-	22,07,737/-

That bank is facing problems in recovery of amount from above PMEGP loan accounts and other many cases for the reason that the borrowers are claiming to have received only a fraction amount of the loan from the brokers.

Thus, above facts prima-facie make it clear that the concerned Branch Head and other officials of J&K Bank branch office Sumbal, District. Bandipora in connivance with some brokers had dishonestly and fraudulently misappropriated the bank funds entrusted to them and put under their control as a public servant by sanctioning and disbursing above mentioned PMEGP loans, in connivance with brokers and unknown others, by causing wrongful loss to the bank.

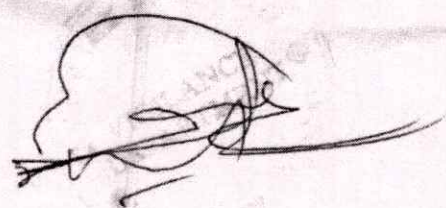
It is therefore, requested that investigation may be conducted in above mentioned loan accounts. The competent authority of the Jammu and Kashmir Bank has accorded mandatory permission U/s 17-A of the PC Act, 1988 (as amended in 2018) to investigate the role of Branch officials, if any, of J&K Bank, Sumbal Branch office.

Yours Sincerely,

Gazanfar, Husain Parag
Employee Code 004204
Incharge Vigilance Deptt.
J&K Bank Ltd. CHQRS
Corporate Office, Srinagar.



S No	Loan Number	a/c	Activity	Date of Disbursement	Supplier number	a/c	Anomaly observed
01	0089-26727-104		Carpet Weaving	17.08.2022	0868-01010-257		Supplier & Bill not genuine
02	0089-26727-105		Carpet Weaving	17.08.2022	0755-02010-147		Supplier & Bill not genuine
03	0089-26727-155		Shawl Embroidery	27.09.2022	0755-02010-147		Supplier & Bill not genuine
04	0089-26727-204		Embroidery works	25.10.2022	0755-02010-147		Supplier & Bill not genuine
05	0089-26727-324		Embroidery works	23.01.2023	0089-02010-679		Supplier & Bill not genuine
06	0089-26727-414		Shuttering Mixer	02.06.2023	0089-01010-2565		Supplier & Bill not genuine
07	0089-26727-417		Shuttering Mixer	13.06.2023	0868-01010-257		Supplier & Bill not genuine
08	0089-26727-421		Carpet Weaving	20.06.2023	0728-01010-557		Supplier & Bill not genuine
09	0089-26727-437		Shuttering Mixer	31.07.2023	0089-01010-3100		Supplier & Bill not genuine
10	0089-26727-438		Shuttering Mixer	31.07.2023	0089-01010-3100		Supplier & Bill not genuine
11	0089-26727-441		Shuttering Mixer	07.08.2023	0089-01010-3100		Supplier & Bill not genuine
12	0089-26727-452		Shuttering Mixer	24.08.2023	0089-01010-3100		Supplier & Bill not genuine
13	0089-26727-460		Shuttering Mixer	11.09.2023	0868-01010-257		Supplier & Bill not genuine
14	0089-26727-482		Carpet Weaving	21.10.2023	0089-01010-693		Supplier & Bill not genuine
15	0089-26727-500		Shuttering Mixer	15.11.2023	0089-01010-3100		Supplier & Bill not genuine
16	0089-26727-503		Shuttering Mixer	22.11.2023	0089-01010-3100		Supplier & Bill not genuine
17	0089-26727-504		Shuttering Mixer	22.11.2023	0868-01010-257		Supplier & Bill not genuine
18	0089-26727-505		Shuttering Mixer	22.11.2023	0868-01010-257		Supplier & Bill not genuine
19	0089-26727-510		Shuttering Mixer	28.11.2023	0868-01010-3100		Supplier & Bill not genuine
20	0089-26727-530		Tailoring/Garments	16.02.2024	0728-01010-702		Supplier & Bill not genuine
21	0089-26727-531		Tailoring/Garments	14.02.2024	0728-01010-702		Supplier & Bill not genuine
22	0089-26727-532		Tailoring/Garments	16.02.2024	0728-01010-702		Supplier & Bill not genuine
23	0089-26727-541		Tailoring/Garments	24.02.2024	0728-01010-702		Supplier & Bill not genuine
24	0089-26727-564		Tailoring/Garments	29.04.2024	0728-01010-702		Supplier & Bill not genuine
25	0089-26727-570		Shuttering Mixer	30.04.2024	0868-01010-257		Supplier & Bill not genuine



Ends. No. 2217 /RC1232024A0004/CBI/ACB/SGR.

Dated: 25.10.2024

Copy to :-

1. The Hon'ble Special Judge, Anti-Corruption (CBI Cases): Kashmir, Srinagar.
(Original Complaint is enclosed with this copy of FIR)
2. The Joint Director/HoZ, CBI Chandigarh Zone, Sector 30, Chandigarh.
3. The CVO, Jammu and Kashmir Bank Ltd., Corporate Office, Srinagar.
4. Shri Homi Garg, Additional SP, CBI, ACB, Srinagar.
- ~~5. Guard File.~~


DIG/Head of Branch
SPE: CBI ACB Srinagar
Rajul Sharma, IPS
DIG/HOB
CBI ACB, SRINAGAR